

Plaintiff's complaint alleged that "Defendants were aware (in 2021) that her doctor told Plaintiff to avoid heavy lifting and repetitive, strenuous movements" but refused to accommodate Plaintiff [¶13c]; in March 2022 Plaintiff provided Defendants with her work restrictions (no standing for prolonged periods of time and no lifting heavy objects) from her doctor, and provided Defendants with her work restrictions and doctors' notes each time she visited the doctor" [¶13e]; that in March 2022 Plaintiff requested a reasonable accommodation to transfer positions within VUSD" and "was effectively denied this accommodation as VUSD failed to provide any response despite Plaintiff's repetitive requests" and thus had to work through the pain and take sick leave to recover periodically [¶13f]; and that by March 2023 "Plaintiff was still denied accommodation of any kind", causing her to have to take off work "often unpaid time, to recover" [¶13g]; and then, was called in to a meeting in March 2023 where she was informed by VUSD's HR director to return to work when fully capable, "without ever granting or acknowledging any kind of accommodation including leave of absence" [¶13h].

As to the 6th cause of action for failure to prevent:

Government Code §12940(k) identifies as actionable "For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring."

A failure to prevent cause of action is dependent upon a claim of actual discrimination (or harassment). Scotch, supra, 173 Cal.App.4th at 1021.

With the court overruling the demurrer to the 1st cause of action for disability discrimination, it must also overrule the demurrer to this failure to prevent cause of action.

Per CRC 3.1320(g), VUSD has 10 days to file its answer to the remainder of the complaint, or its default may be requested and entered.

JEFFREY BRIAN SHAW vs. ADIREN MARKUS VILLANUEVA
Case No. CU25-06634

Plaintiff's Motion to Compel Defendant's Further Responses to Special Interrogatories and Requests for Production

TENTATIVE RULING

The Parties are to appear.
